

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

DECLARATION OF J. LEE HILL

I, J. Lee Hill, declare as follows:

1. I am an associate of the law firm Huth Reynolds LLP (“HR LLP”), which has served as counsel of record for Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”) since this action was filed.

2. I submit this Declaration in support of Complainant’s Memorandum in Opposition to Respondents’ Motion for Reconsideration.

3. Attached hereto as Exhibit A is a true and correct copy of relevant excerpts from the transcript of the deposition of Vincent Delprete taken July 22, 2024 in these proceedings.

4. Attached hereto as Exhibit B is a true and correct copy of relevant excerpts from the transcript of the deposition of Gavin Murdoch taken July 31, 2024 in these proceedings.

To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct.

Executed on September 13, 2024.



J. Lee Hill

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

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Dated: September 13, 2024

A handwritten signature in black ink, appearing to read "Lee Hill", written over a horizontal line.

J. Lee Hill
*For Complainant 20230930-DK-Butterfly-1,
Inc., formerly known as Bed Bath & Beyond Inc.*